

Mohinder Singh vs The State Of Punjab And Others on 1 August, 2013

Author: Hemant Gupta

Bench: Hemant Gupta

CWP No.14228 of 2000

IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

CWP No.14228 of 2000(O&M)

Date of decision: 01.08

Mohinder Singh

.....Petitioner

VERSUS

The State of Punjab and others

.....Respondent

CORAM: HON'BLE MR. JUSTICE HEMANT GUPTA

Present: Sh. Shireesh Gupta, Advocate for the petitioner.
Sh. H.S. Brar, Additional Advocate General, Punjab.

HEMANT GUPTA, J.(oral) The petitioner has invoked the writ jurisdiction of this Court claiming writ of mandamus for promoting the petitioner from 21.06.1996.

The petitioner joined as Constable on 25.07.1964 and was promoted as Head Constable in September, 1979. In the year 1986, the petitioner was promoted as Assistant Sub Inspector. From 08.07.1991, the petitioner was given official promotion as Sub Inspector.

While posted with Punjab Armed Police, Jalandhar in 1991, adverse remarks were recorded in the Annual Confidential Report for the period 01.04.1992 to 12.08.1992. After the representation against the said adverse remarks recorded was declined, the petitioner filed civil suit challenging the adverse remarks. The said civil suit was dismissed on 02.11.1996 and the first appeal on 08.09.1998. Vide separate order of today, the second appeal filed by the present petitioner bearing RSA No.2109 of 1999 stands dismissed.

The claim of the petitioner is that in terms of the judgment of Division Bench of this Court in CWP No.1291 of 1993 titled as Swaran Singh Vs. State of Punjab and others, even though the adverse remarks are recorded in the Annual Confidential Report of the petitioner, he is entitled to be promoted after 3 years of such remarks. Thus, the petitioner is entitled to be promoted from the day his juniors were promoted after the expiry of 3 years.

In reply, the respondents denied the claim of the petitioner for promotion. It is averred that the Departmental Promotion Committee on the basis of adverse remarks held that the petitioner is unfit for promotion. The promotion list "F" was prepared on 30.06.1996 after assessing the suitability of the officers in terms of the criteria, which is as under:-

Criteria

- i) Permanent Sub Inspectors and Sub Inspectors on probation with minimum of 6 years service as N.G.O. out of which at least 3 years in the rank of Sub Inspector.
- ii) Offg. Sub Inspector with minimum of 7 years of service as NGO out of which at least 3 years in the rank of Sub Inspector.
- iii) Cut of date for calculating the length of service was 31.10.1995.

Guidelines

- i) All the reports from the date of promotion as Sub Inspector Diwakar Gulati were taken into consideration. However, more weightage was given to the reports of last five years. Also reports regarding adverse integrity were viewed seriously.
- ii) In respect of adverse report for short period (three months to six months) they were taken into count but more weightage was given to reports proceeding and following the period of longer periods.
- iii) Where record was incomplete or departmental enquiry was pending or criminal case was pending the case was kept pending for the finalisation of departmental enquiry/criminal case. However, where simultaneously there were adverse reports/major punishment, the official was ignored on the basis of such adverse reports and or punishment and the fact of the pendency of the departmental enquiry/criminal case did not weigh with the Committee.

iv) Censure and Warning were not allowed to effect the decision regarding bringing on List 'F', if the record otherwise was satisfactory, as per Govt. instructions.

It is thus contended that in terms of the criteria and the guidelines framed, the petitioner was not considered suitable for promotion by the Departmental Promotion Committee.

In Swaran Singh's case (supra) the remarks recorded was not in relation to any integrity of the officer. The officer was found to be impartial and loyal but the efficiency in moral courage and readiness to expose malpractices of subordinates and efficiency was rated poor and low. It was in these circumstances, the Court held that after lapse of 3 years from recording of the adverse entry, the petitioner should be reconsidered for the purpose of Sub Inspector.

The integrity of the petitioner has been found to be doubtful for the period April, 1992 to August, 1992. The petitioner could not be promoted only after expiry of 3 years on the strength of judgment in Swaran Singh's case (supra) where the adverse remarks was not relating to the integrity of the officer. The Departmental Promotion Committee has considered the service record of the petitioner to find him unsuitable for promotion. In exercise of power of judicial review, I do not find that such decision can be said to be suffering from any illegality or irregularity.

I do not find any merit in the present writ petition. Consequently, the present writ petition is dismissed.

AUGUST 1, 2013
'D. Gulati'

(HEMANT GUPTA)
JUDGE